

CHARTER SCHOOLS

A. Charter School Agreement Contents

1. At or within 90 days of approval of a charter application, the School Board and the management committee of the approved public charter school shall execute a charter contract that clearly sets forth (i) the academic and operational performance expectations and measures by which the public charter school will be judged and (ii) the administrative relationship between the local school board and public charter school, including each party's rights and duties. Such 90-day period may be extended by a period not to exceed 30 days by mutual agreement of the parties. Such performance expectations and measures shall include applicable federal and state accountability requirements and may be refined or amended by mutual agreement after the public charter school has collected baseline achievement data for its enrolled students.

2. The academic and operational performance expectations and measures in the charter contract shall be based on a performance framework that clearly sets forth the academic and operational performance indicators, measures, and metrics that will guide the local school board's evaluations of each public charter school. The performance framework shall include indicators, measures, and metrics for:

- a. Student academic proficiency;
- b. Student academic growth;
- c. Achievement gaps in both proficiency and growth between the major student subgroups based on gender, race, poverty status, special education status, English language learner status, and gifted status;
- d. Attendance;
- e. Recurrent annual enrollment;
- f. Postsecondary education readiness of high school students;
- g. Financial performance and sustainability; and
- h. The performance and stewardship of the management committee, including compliance with all applicable laws, regulations, and terms of the charter contract.

3. The performance framework shall allow the inclusion of additional rigorous, valid, and reliable indicators proposed by a public charter school to augment external evaluations of its performance, provided that the School Board approves the quality and rigor of such indicators and such indicators are consistent with the purposes of the Charter School law.

CHARTER SCHOOLS

4. The performance framework shall require the disaggregation of all student performance data by major student subgroups based on gender, race, poverty status, special education status, English language learner status, and gifted status.

5. Annual performance targets shall be set by each public charter school and the School Board and shall be designed to help each school meet applicable federal, state, and local school board expectations.

6. The charter contract shall be signed by the chairman of the School Board and the president or chairman of the public charter school's management committee. Within 10 days of executing a charter contract, the School Board shall submit to the State Board written notification of the charter contract execution, including a copy of the executed charter contract and any attachments.

7. No public charter school shall commence operations without a charter contract executed in accordance with this regulation and approved in an open meeting of the School Board.

8. If the charter application proposes a program to increase the educational opportunities for at-risk students, including those proposals for residential charter schools for at-risk students, the School Board or relevant school boards, as the case may be, on behalf of the public charter school, shall also request that the State Board approve an Individual School Accreditation Plan for the evaluation of the performance of the school as authorized by the Standards of Accreditation pursuant to 8 VAC 20-131-280(C) of the Virginia Administrative Code.

9. Any material revision of the terms of the contract may be made only with the approval of the School Board or relevant school boards and the management committee of the public charter school.

B. Charter Schools for At-risk Students. The Loudoun County School Board is authorized to establish public charter schools within the school division. Priority shall be given to public charter school applications designed to increase the educational opportunities of at-risk students, and at least one-half of the public charter schools in the division shall be for at-risk students. The one-half requirement shall not apply to the conversion of existing public schools which will serve the same community nor shall public school conversions count in the determination of school division compliance with the one-half requirement. At-risk student means a student having a physical, emotional, intellectual, socioeconomic, or cultural risk factor, as defined in Board of Education criteria, which research indicates may negatively influence educational success.

C. Definition of Charter School. A charter school is a public, non-religious, or non-home-based alternative school located within the Loudoun County School Division or operated jointly by multiple school divisions. A charter school may be created as a new

CHARTER SCHOOLS

public school or through the conversion of all or part of an existing public school. Conversions of private schools or home-based programs shall not be permitted.

D. Establishment and Operation.

No public charter school shall discriminate against any individual on the basis of actual or perceived disability, race, creed, color, gender identity, sex, sexual orientation, marital status, pregnancy, childbirth or related medical conditions, national origin, religion, ancestry, age, genetic information or need for special education services or any other unlawful basis. No public charter school shall discriminate against any student on the basis of limited proficiency in English, and each public charter school shall provide students who have limited proficiency in English with appropriate services designed to teach such students English and the general curriculum, consistent with federal civil rights laws. No public charter school shall engage in any sectarian practices in its educational program, admissions or employment policies, or operations.

Charter schools must comply with the Standards of Quality, including the Standards of Learning and Standards of Accreditation.

1. Enrollment shall be open to any child who is deemed to reside within the Loudoun County School Division, through a lottery process on a space-available basis except that in the case of the conversion of an existing public school, students who attend the school and their siblings shall be given the opportunity to enroll in advance of the lottery process. A waiting list shall be established if adequate space is not available to accommodate all students whose parents have requested to be entered in the lottery process. Such waiting list shall also be prioritized through a lottery process and parents shall be informed of their child's position on the list. A public charter school shall not charge tuition.

2. A charter school shall be administered and operated by a management committee in the manner agreed to by the charter school applicant and the Loudoun County School Board, as reflected in the charter contract. The management committee shall be composed of parents of students enrolled in the school, teachers and administrators working in the school, and representatives of any community sponsors.

3. Pursuant to an approved charter agreement, a charter school shall be responsible for its own operations, including, but not limited to, budget preparation, contracts for services, and personnel matters. A charter school may negotiate and contract with the School Board, or any third party, for the provision of necessary services, the use of school buildings or grounds and the operation and maintenance thereof and any activity or undertaking it is required to perform in order to carry out its educational program. Any services for which a charter school contracts with the Loudoun County School Division shall not exceed the division's costs to provide such services.

CHARTER SCHOOLS

4. The Loudoun County School Division may allow, in its sole discretion, a public charter school to use vacant or unused properties or real estate, if any, owned by the School Board. A charter school shall not be required to pay rent for space deemed by the School Division to be available, as negotiated by contract, within the Loudoun County School Division. All other costs for the operation and management of the facilities used by the charter school shall be subject to negotiation between the charter school and the School Division.

E. Employment of Professional, Licensed Personnel. At the sole discretion of the Loudoun County School Board, charter school personnel may be employees of the Loudoun County School Board and, if so, they will be assigned by mutual agreement between the charter school and the Loudoun County School Division. If charter school personnel are not employees of the school division, they shall still remain subject to Code of Virginia Sections 22.1-296.1, 22.1-296.2 and 22.-296.4. In the event the Loudoun County School Board chooses to require that charter school personnel be employees of the Loudoun County School Board, then the following applies:

1. Professional, licensed employees currently employed by the School Board may request assignment to a charter school and may be assigned by the Division Superintendent to a charter school for one contract year and reassigned annually upon the request of the employee and the charter school's management committee. No licensed employee working at the Charter School will be guaranteed reassignment back to LCPS unless the licensed employee was employed by LCPS in the school year immediately preceding the reassignment to the Charter School. The law provides no reassignment rights back to LCPS for non-licensed staff.

2. Such professional, licensed employees assigned to a charter school shall receive the same employment benefits as such personnel assigned to non-charter schools.

3. Professional, licensed personnel who are not recommended for reassignment in the charter school, other than for reasons cited in §22.1-307 of the Code of Virginia, may request transfer to a non-charter school, provided the licensed employee was employed by LCPS in the school year immediately preceding the reassignment to the Charter School. The law no provides not reassignment rights back to LCPS for non-licensed staff.

4. I. All personnel requests shall be handled according to Loudoun County School Board policy.

F. Funding. Charter schools shall be funded as provided by law and negotiated in the charter contract.

G. Charter Contract. An approved charter application shall constitute an agreement, and its terms shall be the terms of the agreement between the charter school and the

CHARTER SCHOOLS

Loudoun County School Board. Upon approval of a charter application, the Loudoun County School Board and the management committee of the charter school shall enter into a contract containing all of the negotiated agreements between the School Board and the charter school along with the approved waivers from agreed-upon School Board policies and all requests for release from State regulations. The charter contract shall also include other provisions negotiated by the Loudoun County School Board or its designee. A charter may be granted for up to five school years. Any material revision of the charter contract shall be made in writing and must be approved by the Loudoun County School Board and the charter school management committee. The charter school contract shall include language that the applicant specifically agrees to hold harmless and indemnify the Loudoun County School Board, its officials, employees, agents and representative, for all liabilities, debts, obligations, and other matters arising out of the operation of the charter school. In addition, the charter school contract shall address procedures for dissolution of the charter school, ensuring that the applicant's agreement to hold harmless and indemnify the Loudoun County School Board shall survive dissolution of the charter school, whether due to revocation, non-renewal, or other action.

H. Waivers of School Board Policy and State Regulation. Pursuant to a charter agreement and with prior waiver approval, a charter school may operate free from specific Loudoun County School Board policies and state regulations, except the Standards of Quality and, by reference, the Standards of Accreditation and Standards of Learning. The contract between the charter school and the Loudoun County School Board shall reflect all agreements for release from school division policies and all requests for release from state regulations, except as provided above. The School Board shall request from the Board of Education, on behalf of its charter schools, waivers from state regulation contained in each approved charter application. If the charter school is designed to increase the opportunities for at-risk students, then the School Board shall request that the State Board of Education approve an Individual School Accreditation Plan, as provided by state law and Virginia Department of Education Regulations.

I. Dissolution of Charter School. The charter school contract shall reflect procedures for dissolution of the charter school, including liability for financial and other matters including the preservation and future retrieval of student records. Such procedures will survive dissolution or revocation or declination to renew a charter school contract. Under no circumstances will the Loudoun County School Board assume responsibility for any contractual or other liabilities of the charter school except as agreed to by contract.

J. Reports. The Loudoun County School Board shall report annually to the Board of Education the following:

1. The grant or denial of public charter school applications to the Board and shall specify the maximum number of charters that may be authorized, if any;

CHARTER SCHOOLS

2. The number of charters granted or denied; and
3. Whether a public charter school is designed to increase the educational opportunities of at-risk students.

K. Review Process for Charter School Applications After State Board of Education Review

1. Initial Review of an Application Not Initiated by School Board– Phase I (2 Months):
 - a. Following State Board of Education review, applications must be received in final format and presented by the applicant at a public School Board meeting. The date of the presentation to the School Board will begin the period of approximately (6) months for review and public input prior to the School Board making a determination on the application.
 - b. The Director of Instructional Services will be available to respond to questions from the applicant in preparation of the application.
 - c. An original, completed application plus six (6) copies must be submitted to the office of the Director of Instructional Services upon formal presentation to the School Board.
 - d. School Board approval is generally required one (1) year prior to the desired opening date.
 - e. Application deadlines may be extended only by mutual agreement. An application fee of \$1,000.00 must be submitted with the completed application to help defray costs associated with application review. The Director of Instructional Programs shall undertake a preliminary review of the application to determine whether it is complete in all respects. If the charter school application is incomplete, the applicant shall be notified and requested to supply the necessary information. If the applicant fails to supply such information after being requested to do so, the application shall be placed in an inactive file and no further review or other consideration shall be required until such time as the application is considered complete.

CHARTER SCHOOLS

- f. The Director of Instructional Programs will then organize the staff review which may include meeting with and/or interviewing the applicant, clarifying, reviewing and communicating with the applicant concerning terms of the proposed agreement followed by a staff report to the School Board.
- g. Two (2) months from the date of the Charter School's presentation to the School Board are allotted for the staff's submission of its preliminary report.

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